Public Offer Agreement

1. Definitions

- "Company" – ASDhere Hosting
- "Client" – An individual or entity that accepts this Agreement.
- "Services" – Hosting services, including VPS, dedicated servers, and related services.
- "Website" – The official website: asdhere.net
- "Control Panel" – The Client's personal dashboard for service management.
- "Order" – A request submitted by the Client specifying the desired Services.
- "Tariff Plan" – A set of pricing terms under which the Company offers specific Services.

2. Subject of the Offer

2.1. The Company provides the Client with the Services under the terms specified in this Agreement.

2.2. The specific types and costs of the Services are determined by the active Tariff Plans published in the Control Panel.

2.3. By placing an Order, the Client fully and unconditionally agrees to the terms of this Agreement.

3. Rights and Obligations

3.1. Company's Rights

- Temporarily suspend or terminate the provision of Services for maintenance, security reasons, or policy violations, with prior notification when possible.
- Modify, update, or discontinue Services at its discretion, provided it does not substantially degrade existing features without reasonable notice.
- Refuse service at its discretion, particularly in cases of suspected fraud, abuse, or illegal activity.
- Block or restrict access if a Client's actions threaten the stability, security, or performance of the Services or impact third parties.
- Unilaterally amend this Agreement and Tariff Plans, notifying the Client at least 7 (seven) calendar days before the changes take effect.
- Independently determine whether a Client's actions violate this Agreement.

3.2. Company's Obligations

- Provide the Services as described in this Agreement and the Tariff Plans published on the Website.
- Process payments correctly and reflect them in the Client's Control Panel.
- Provide technical support as outlined in the applicable Service Plan.
- Protect Client information and only disclose it to third parties when legally required.
- Service Provision Disclaimer – The Company provides Services "as is" and does not guarantee their uninterrupted or error-free operation.
- Limitation of Liability – The Company shall not be liable for direct or indirect damages resulting from the use or inability to use its Services.

3.3. Client's Rights

- Access information about the Services through the Control Panel, including up-to-date Tariff Plans, resource usage statistics, and payment history.
- Manage the Services through the Control Panel, independently adjusting settings, ordering additional services, and renewing subscriptions.
- Receive consultation and technical support from the Company, including assistance with configuration, troubleshooting, and service restoration.
- Dispute incorrect charges or unauthorized service disconnections by submitting a request via the Control Panel.
- Request the deletion of their data in accordance with the Privacy Policy.

3.4. Client's Obligations

- Use the Services legally and in accordance with international laws.
- Ensure the security of account credentials and notify the Company of any unauthorized access.
- Not engage in fraud, abuse, or violations that could harm the Company or third parties.
- Timely pay for the Services and manage renewals to avoid suspensions.
- Compliance with Legal Requirements – The Client must use the Services in accordance with applicable laws and must not engage in illegal activities.
- Confidentiality of Credentials – The Client is responsible for keeping their login details secure and must not share them with third parties.

4. Payment Terms

4.1. Payment for the Services is made through the Control Panel using the available payment methods.

4.2. All Services are provided on a 100% prepayment basis, unless otherwise agreed with the Company individually.

4.3. The Company reserves the right to change the Service pricing by updating the Tariff Plans published on the Website and in the Control Panel.

4.4. If the Service prices change, the Company will notify Clients at least 7 (seven) calendar days before the new rates take effect via:

- An email sent to the address specified in the Client's account;
- A message in the Control Panel;
- A notice published on the Company's Website.

4.5. New rates apply only to future payments. If the Client has prepaid for the Services in advance, the price remains unchanged for the paid period.

5. Refund Policy

5.1. A refund is possible within 14 days from the date of Service provision, only if the Service does not meet the declared technical specifications.

5.2. Refunds are not issued for additional services, IP addresses, software, or other add-ons.

5.3. Refunds for services are credited only to the Client's internal account balance in the Control Panel.

5.4. The funds can be withdrawn from the internal balance to the client's banking details.

5.4.1. If technically possible, a refund will be processed to the same payment method used for the payment, subject to AML.

5.4.2. If a refund to the original payment method is impossible, the Client may request a refund to an alternative account, subject to:

- A notarized written request including full identification details
- Verification of ownership of the specified account
- Translation and notarization of documents if issued in another language
- A written explanation of why alternative account are used.
- Processing time of up to 45 days, extendable if additional verification is required
- The commission for processing refunds to other banking details is up to 10% of the refund amount, depending on complexity

By initiating any payment or requesting a refund, the Client confirms their acceptance of these terms.

6. Force Majeure Circumstances

6.1. Definition of Force Majeure - The Company is released from liability for full or partial non-fulfillment of its obligations under this Agreement if such non-fulfillment is caused by circumstances beyond the reasonable control of the Company (force majeure), including but not limited to:

- Cyberattacks and external threats
  - Large-scale DDoS attacks targeting the Company's servers or network
  - Viruses or hacking attacks that disrupt infrastructure operations
  - Unauthorized interference by third parties in the operation of servers, data centers, or the Control Panel
- Technical failures beyond the Company's control
  - Data center failures, including fires, floods, or equipment damage
  - Critical failures in the operation of internet providers, backbone networks, or undersea cables
- Natural disasters and emergencies
  - Earthquakes, hurricanes, floods, tsunamis, tornadoes, wildfires
- Political and social events
  - Wars, armed conflicts, revolutions, terrorist acts, riots
  - The imposition of sanctions or embargoes that hinder the Company's operations

6.2. Consequences of Force Majeure

- The Company undertakes to notify the Client within 72 hours (if possible)
- The period of fulfilling obligations is suspended for the duration of the force majeure
- If the force majeure lasts more than 60 days, either party has the right to terminate the Agreement
- The Company is not liable for damages, losses, or data loss suffered by the Client due to force majeure

6.3. Dispute Resolution

- All disputes and disagreements should be resolved **through negotiations**
- If an agreement cannot be reached, disputes shall be referred to the courts in the jurisdiction where the Company is registered

7. Amendments and Termination

7.1. Amendments to the Agreement

- The Company has the right to unilaterally amend the terms of this Agreement
- All changes come into effect upon publication of the updated text on the Website and/or in the Control Panel
- If changes affect the Client's rights and obligations, the Company undertakes to notify the Client at least 7 (seven) calendar days before the changes take effect through one of the following methods:
  - Posting a notice in the Control Panel;
  - Sending an email to the address registered in the Client's account;
  - Publishing an announcement on the Company's Website.
- If the Client continues to use the Services after the changes take effect, this constitutes full and unconditional acceptance of the new terms

7.2. Termination of the Agreement by the Client

- The Client has the right to terminate the Agreement at any time by notifying the Company through the Control Panel
  - All previously paid Services remain active until the end of the paid period but will not be renewed
  - The Client will lose the ability to order new Services
  - Restrictions on the use of the Control Panel will be applied, including a ban on balance top-ups and changes to existing Services
  - If the Client has unused funds in their balance, a refund is only possible in accordance with the Refund Policy (Section 5 of this Agreement)
- In the event of termination of the Agreement:
- Once all paid Services expire, the Client's account may be deleted or moved to an archived state

7.3. Termination of the Agreement by the Company

- The Company has the right to unilaterally terminate the Agreement with the Client in the following cases:
  - The Client violates the terms of this Agreement
  - The Services are used for illegal activities (DDoS attacks, malware distribution, fraud, etc.)
  - Violation of legislation or international sanction regimes
  - Failure to provide the required documents under KYC/AML procedures
  - Abusive behavior, threats, or inappropriate communication with the Company's support team
- In the event of termination by the Company
  - All active Services of the Client may be **immediately suspended or deleted without the possibility of recovery**
  - The Client may be **denied access to the Control Panel and all Company services**

8. Tariffs and Payment

8.1. Final Prices and Tariff Plans - The current Tariff Plans, pricing conditions, and payment methods are available in the Client's Control Panel at my.asdhere.net

- The Company reserves the right to change the Tariff Plans at its discretion

8.2. Payment Terms

- The Client must pay for the Services in full before activation
- If the Client fails to make a payment by the due date, the Services may be suspended or deleted

8.3. Taxes and Fees

- The Client is responsible for all applicable taxes, duties, and fees associated with the use of the Services
- The Company does not compensate for additional charges applied by payment processors or banks

8.4. Automatic Renewals

- If the Client enables **automatic renewal**, the Company will attempt to charge the due amount from the Client's account balance or linked payment method
- If the payment fails, the Services may be suspended until payment is received